

SENATE No. 1604

The Commonwealth of Massachusetts

PRESENTED BY:

Patrick M. O'Connor

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to emergency medical services oversight.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Patrick M. O'Connor</i>	<i>First Plymouth and Norfolk</i>	
<i>Paul W. Mark</i>	<i>Berkshire, Hampden, Franklin and Hampshire</i>	<i>5/1/2025</i>

SENATE No. 1604

By Mr. O'Connor, a petition (accompanied by bill, Senate, No. 1604) of Patrick M. O'Connor for legislation relative to emergency medical services oversight. Public Health.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to emergency medical services oversight.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Paragraph (6) of subsection (b) of section 3 of chapter 111C, as appearing
2 in the 2022 Official Edition, is hereby amended by inserting after the word “years”, in line 32,
3 the following words:- , provided that, such plan shall include guidelines for clear and streamlined
4 communication between the regional councils and the department.

5 SECTION 2. Paragraph (6) of subsection (c) of said section 4 of said chapter 111C, as so
6 appearing, is hereby amended by inserting after the words “input from”, in line 50, the following
7 words:- , and communication to, .

8 SECTION 3. Said section 4 of said chapter 111C, as so appearing, is hereby amended by
9 inserting after subsection (c) the following section:-

10 (d) Each regional EMS council shall prepare and annually file with the department and
11 the board, on or before May 30, a regional EMS services and support plan outlining the regional
12 EMS council’s planned efforts to meet and advance the regional EMS council’s roles and

responsibilities, as outlined in section 4(c) of this chapter. Each regional EMS plan shall be consistent with the state EMS plan, although it may reflect regional differences. Each regional EMS system plan shall also include, without limitation, a trauma plan consisting of, at a minimum, trauma point of entry guidelines and scene triage criteria.

Upon submission, the department may amend each regional EMS council contract, subject to appropriation and to the guidelines provided by section 5 of this chapter, to reflect and respond to the submitted regional EMS plans.

SECTION 4. Subsection (d) of section 5 of said chapter 111C, as so appearing, is hereby amended by inserting after the word “regions”, in line 18, the following words:- , as well as the regional council’s annual submitted regional EMS plan.

SECTION 5. Said chapter 111C is hereby amended by striking out section 14, as so appearing, and inserting in place thereof the following section:-

The department shall establish and implement procedures for the making, transmission and investigation of complaints concerning any person certified, licensed, designated or otherwise approved by the department under this chapter. The department shall prepare, and make available on the office of emergency services website, a description of such procedures, including any forms or other materials required to make such a complaint. The department shall, as the public interest may require, investigate every complaint received, except to the extent that the act or practice complained of does not constitute a violation of this chapter or any regulation, guideline or order under this chapter. The department shall refer complaints to other agencies and organizations, as appropriate. Upon investigation the department shall notify the

complainant, if known, of its action in the matter. If it finds that an investigation is not required, it shall notify the complainant, if known, of its finding and with its reason.

SECTION 6. Section 3 of said chapter 111C, as so appearing, is hereby amended by inserting after subsection (c) the following section:-

(d) The department, in consultation with the regional councils, shall study and make recommendations for potential permanent funding sources and mechanisms to support the office of emergency medical services, the regional councils, and central medical emergency direction centers. The department shall issue a report, with findings and recommendations, to the clerks of the house of representatives and senate, as well as the house and senate committees on ways and means, by December 1, 2025.

SECTION 7. Chapter 111C of the General Laws is hereby amended by inserting after section 25 the following section:-

Section 26. (a) There shall be an emergency medical services peer licensure advisory committee, which shall consist of the commissioner or a designee, the director of the office of emergency medical services or a designee, and 6 members appointed by the commissioner, or their designees, as follows: 1 each from the Professional Fire Fighters of Massachusetts, the Massachusetts Call/Volunteer Firefighters Association, the Professional Fire Chiefs Association of Massachusetts, the Massachusetts Ambulance Association, the Massachusetts Association of Hospital-Based Paramedic Services, and the International Association of EMTs and Paramedics.

(b) The advisory committee shall meet, at a minimum, twice annually to advise the department on the complaint resolution process and disciplinary actions relative to persons certified, licensed, designated or otherwise approved by the department under chapter 111C.

- 56 Each appointed member of this advisory council shall serve a term of 3 years, or until a
- 57 successor is appointed and qualified. No appointed member shall serve more than 3 terms.
- 58 Appointees shall serve without compensation.